

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE GRANTING A NON-EXCLUSIVE FRANCHISE TO VISIONARY COMMUNICATIONS, INC., WITHIN THE RIGHTS-OF-WAY OF THE CITY OF CHEYENNE, WYOMING."

WHEREAS, Visionary Communications, Inc., a corporation created and existing under the laws of the State of Wyoming, hereinafter "Company," desires to construct, erect, renew, repair, maintain, and operate in, upon, along, across, under, and over the streets, alleys, and all other public rights-of-way within the City of Cheyenne, a municipal corporation created and existing under the laws of the State of Wyoming, hereinafter "City," a system for the provision of telecommunications services; and

WHEREAS, Article 13, § 4 of the Wyoming Constitution states that no street passenger railway, telegraph, telephone, or electric light line shall be constructed within the limits of any municipal organization without the consent of its local authorities; and

WHEREAS, the City desires to grant to Company, its successors and assigns, a non-exclusive Franchise, defined below, to construct, erect, renew, repair, maintain, upgrade, and operate in, upon, along, across, under, and over the streets, alleys, and all other public rights-of-way within the corporate limits of the City, a system for transmission of telecommunications services and to provide for compensation to the City for management of its rights-of-way.

NOW, THEREFORE, BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, STATE OF WYOMING:

Section 1. Non-exclusive Franchise.

That Company is hereby granted a non-exclusive Franchise ("Franchise") to construct, erect, renew, repair, maintain, upgrade, and operate a system for transmission of telecommunications services in, upon, along, across, under, and over the streets, alleys, and all other public rights-of-way within the corporate limits of the City.

Section 2. Definitions.

For the purposes of this ordinance, the following terms, phrases, words, and their derivations will have the meanings given herein. When not inconsistent with the context, words used in the present tense include the future, words in the plural include the singular, and words in the singular include the plural. All terms not otherwise defined herein are defined pursuant to 47 U.S.C. § 153 ("Definitions").

"Right-of-way" means any highway, street, road, sidewalk, alley, or other public right-of-way or public utility easement under the jurisdiction and control of the City, which has been acquired, established, dedicated, or devoted to such purposes.

“Telecommunications System” or “System” means those Facilities necessary for Company to provide telecommunications services.

“City” means the City of Cheyenne.

“Governing Body” means the governing body of the City.

Section 3. Grant of Authority.

(a) This ordinance grants permission and authority to Company, upon the terms and subject to the conditions of this non-exclusive Franchise, to construct, erect, renew, repair, maintain, upgrade and operate in, upon, along, across, under, and over the streets, alleys and all other public rights-of-way of the City for a period of ten (10) years from and after its acceptance by Company, and thereafter until terminated by at least six (6) months prior written notice either by the City to the Company or by the Company to the City, a Telecommunications System including, but not limited to, lines, poles, anchors, wires, cable, conduit, vaults, hand holds, laterals, and other fixtures and equipment (“Facilities”), and to use said System for the transmission of sound, signals, data, or other means of Telecommunications. The City and the Company agree to comply in all respects with Wyoming Statute § 1-15-131.

(b) Any rights, privileges, and authority granted to Company under this Franchise are subject to the rights of the police power of the City.

(c) Nothing in this Franchise excuses Company of its obligation to obtain use and/or development authorization and permits from the City before entering, occupying, or using rights-of-way to construct, install, operate, maintain, repair, or remove such Facilities.

(d) Nothing in this Franchise excuses Company of its obligation to comply with applicable codes, rules, regulations, and standards, subject to verification by the City of such compliance. This includes the Company’s obligation to comply with any and all required separation distances between its wires, cables, electrical conductors, and other equipment required to meet certain separation distances between said equipment and structures. In all cases, separation distances shall comply with the current adopted technical code adopted by the City and on file with the City Clerk. By way of example and not limitation, such code may be the National Electric Code.

(e) Nothing in this Franchise shall be construed to limit taxing authority or other lawful authority to impose charges or fees, or to excuse Company of any obligation to pay lawfully imposed charges or fees.

(f) Nothing in this Franchise shall be construed to create a duty upon the City to be responsible for construction of Facilities or to modify rights-of-way to accommodate Company’s Facilities.

(g) Nothing in this Franchise shall be construed to create, expand, or extend any liability of the City to any third-party user of Company's Facilities or to otherwise recognize or create third-party beneficiaries to this Franchise.

(h) In the event at least six (6) months' prior written notice shall be given by the City to the Company, or by the Company to the City of its desire to terminate the permission and authority granted by this Franchise, the permission and authority granted by this Franchise shall thereupon expire in accordance with such notice. Whereupon, this ordinance shall be null and void and of no effect whatsoever and all rights and privileges granted by this Franchise shall be at an end except for the indemnification obligations of the Company.

Section 4. Location of Facilities.

(a) In the event the location of Company's Facilities and the Telecommunications System, and the construction thereof, or any change or extension (or the removal thereof), shall necessitate the disturbance of any street, alley, or other public right-of-way, then such shall be subject to the approval of the City's Department of Engineering and Department of Public Works, which approval shall not be unreasonably denied, conditioned, or delayed.

(b) The Company shall place on file with the City Clerk plans showing the location and character of each pole and each conduit to be erected or laid, and the number of ducts in each conduit and the location of manholes, handholds, vaults, or other openings to gain access to said conduit; and no portion of the Telecommunications System or associated Facilities shall be erected, constructed, or laid upon, under or over any street, alley, or other public right-of-way, until a permit therefore has issued, subject to the approval of the Department of Engineering, which shall indicate the time, manner and place of laying, constructing, or erecting the said Telecommunications System.

(c) In any instance (except as hereinafter expressly otherwise provided) where the City requires construction in the public right-of-way for purposes of repair, widening, repaving, regrading, or any other relevant purpose where Company's Telecommunications System and associated Facilities are installed, the Company shall, as soon as reasonably possible, upon written notice from the City, remove or relocate its Facilities to conform with the City's written notice. Any portion of public right-of-way disturbed by Company's removal or relocation of its Telecommunications System and associated Facilities, shall be restored by Company to the condition existing prior to Company's construction. Company shall, upon receipt of written notice from the City of Cheyenne, for a period of twelve (12) months following Company's removal, relocation, and restoration of public rights-of-way subject to this sub-section, repair any damaged, uneven, or settled sections of right-of-way caused by Company's removal or relocation of its Facilities.

(d) Company may place its Facilities underground or above ground subject to the approval of the City and, provided, that Company must place its Facilities in a manner that is non-discriminatory to other Telecommunications Service providers.

(e) Company's Facilities shall not interfere with the use of rights-of-way or City property by the City, the general public, or other persons authorized to enter, occupy, or use rights-of-way or City property. Whenever new Facilities will exhaust the capacity of a right-of-way to reasonably accommodate future users or Facilities, the Company shall provide access to its conduit to future users and facilities subject to the approval of the Company and third-party users. However, Company shall not permit installations by others in its conduit in the City without written approval of the City, which approval shall not be in lieu of a franchise or other requirements of the City and shall not abrogate Company's responsibility for compliance with this Franchise by third-party users of the Telecommunications System.

(f) Upon receipt of reasonable notice by the City, Company shall relocate its Facilities at its expense at the request of the City in the event of an unforeseen emergency that creates an immediate threat to the public safety, health or welfare.

Section 5. Poles, Conduit, Structures, and Property Owned by Others.

Company shall obtain written approval from the owners of utility poles, conduit, structures, and property not owned by Company, prior to attaching to or otherwise using such poles, conduit, structures, or property, and shall provide proof of such approval to the City. The installation of Facilities by Company on or in the poles, structures, or property owned by others shall be subject to and limited by the owner's authority to enter, occupy, and use rights-of-way. In the event that the authority of the owner of poles, structures, or property to enter, occupy, and use the rights-of-way either expires, terminates, or is cancelled, the authority of Company to construct, install, operate, maintain, and repair Company's Facilities at such locations may be immediately cancelled at the sole option of the City. The City shall not be liable for the costs of removal of Facilities arising from expiration, termination, or cancellation of any pole owner's authority to enter, occupy, or use rights-of-way for any reason whatsoever. However, the City shall seek alternative placement of said facilities working with the Company to accomplish the process of maintaining its service to the citizens.

Section 6. Construction and Installation Requirements.

(a) The technical performance of the Facilities must meet or exceed all applicable industry standards.

(b) All Facilities shall be installed in accordance with the best engineering, quality, and construction practices and standards of the telecommunications industry. If Facilities are installed in existing paved streets and alleys, they shall be pushed or bored in such a manner that the existing pavement is not disturbed, unless open cutting is approved in writing by the City Engineer before the Company undertakes the work.

(c) All Facilities shall be constructed and installed in such manner and at such points so as not to inconvenience the City or public use of the rights-of-way or to adversely affect the public health, safety, or welfare and in conformity with plans approved by the City.

(d) Company's installations and operations shall conform to all federal, state, local, and industry codes, rules, regulations, standards, and laws. Company must cease work immediately, if the City reasonably determines that Company is not in compliance with such codes, rules, regulations, or standards, and may not begin or resume work until the City determines that Company is in compliance. The City shall not be liable for any costs arising out of delays occurring as a result of such work stoppage.

(e) Company shall have the sole responsibility for obtaining, at its own cost and expense, all permits, licenses, or other forms of approval or authorization necessary to construct, operate, maintain, or repair or expand the Telecommunications System, and to construct, maintain, and repair any part thereof, including right-of-way use permits.

(f) Any tree trimming shall be in accordance with City Code.

(g) Neither approval of plans by the City nor any action or inaction by the City shall relieve Company of any duty, obligation, or responsibility for the design, construction, and installation of its Facilities. Company is solely responsible for the supervision, condition, and quality of the work done, whether it is performed by itself or by its contractors, agents, or assigns.

(h) Except as to emergency repairs, Company shall, prior to excavating within any street, alley, or other public place and installing any conduit, overhead cable, or equipment therein, file with the appropriate City Department any and all required applications for permits including, but not limited to, a right-of-way encroachment permit application. Such application(s) shall include plans and specifications thereof showing the work to be done, the location and nature of the installation to be made, repaired, or maintained, and a schedule showing the times of beginning and completion. The Company shall secure any required permit from the City before proceeding with any such work. The Company shall conform to all requirements of the City Code and regulations adopted pursuant thereto, as such requirements and regulations currently exist or may be amended. Upon completion of the work, Company shall provide the City with as-built maps showing the final location of the Facilities.

(i) All construction and/or maintenance work as provided herein shall be performed in conformity with the plans and specifications filed with the City and with the permit or permits issued.

(j) If an emergency requires immediate action by Company for the protection of the Facilities, City property, or other persons or property, then Company may proceed without first obtaining the normally required permits. In such event, Company must: (1) take all necessary and prudent steps to protect, support, and keep safe from harm the Facilities or any part thereof, City property, or other persons or property and to protect the public health, safety, and welfare; and (2) as soon as possible thereafter, must obtain the required permits and comply with any mitigation requirements or other conditions in the permit.

(k) Whenever necessary, after construction or maintenance of any of Company's Facilities within the right-of-way, the Company shall, without delay and at Company's sole expense, remove all debris and restore the surface disturbed by Company as nearly as possible to as good or better condition as it was in before the work began. In no event shall the Company fail to close any street opening within seven (7) days after the Company initiated the street opening, absent approval of the City Engineer. Such restoration shall be done in a manner consistent with applicable codes and laws and to the City's satisfaction and specifications.

(l) Company shall provide the City with GIS-level maps showing the size and location of the Facilities within the City in a format acceptable to the City, subject to the City's agreement to maintain the confidentiality of such information to the extent allowed by law. The City agrees it will comply with applicable state law regarding public disclosure of Company's maps and information and will withhold such disclosure from any third-party to the extent allowed by law. Any map or information furnished to the City pursuant to this Franchise shall remain the Company's proprietary information for all purposes to the extent allowed by law. Company shall provide locates and field verify its Facilities at no cost to the City.

(m) Company shall be solely and completely responsible for workplace safety and safe working practices on its job sites within the City, including safety of all persons and property during any work.

(n) Company shall restore the right-of-way to pre-construction condition or better. Company agrees to pay all costs and expenditures required on rights-of-way as a result of settling, subsidence, or any other need for repairs or maintenance resulting from excavations made by Company for necessary trench patch maintenance until the next paving job. Favorable weather conditions permitting, Company agrees to repair rights-of-way as a result of settling, subsidence, or other needed repairs or maintenance resulting from excavations made by the Company upon forty-eight (48) hours' notice excluding weekends and holidays. If Company fails to undertake such repairs as herein provided, the City may perform the repairs at Company's expense.

Section 7. Coordination of Construction and Installation Activities and Other Work.

(a) Company shall coordinate its construction and installation activities and other work with the City and other users of the rights-of-way at least annually or as determined by the City.

(b) Company shall conduct its construction and installation activities at all times so as to avoid conflicts with the facilities of other users, occupants, utilities, franchisees, or permittees of the rights-of-way.

Section 8. Safety and Maintenance Requirements.

(a) All work authorized and required under this Franchise shall be performed in a safe, thorough, and workmanlike manner.

(b) Company, in accordance with applicable federal, state, and local safety requirements, shall at all times employ necessary care and shall use commonly accepted methods and devices for preventing failures and accidents that are likely to cause damage, injury, or nuisance to occur. All Facilities, wherever situated or located, shall at all times be kept in a good, safe, and suitable condition. If the City finds that Company is responsible for a violation of a safety code or other applicable regulation, upon Company's receipt of written notice, the City may, after discussion with Company, establish in writing a reasonable time for Company to make necessary repairs. If the repairs are not made within the established written time frame, the City may make the repairs itself at the cost of the Company or have them made at the cost of Company.

(c) If Company fails to timely commence, pursue, or complete any work as required by law, permit, or this Franchise, the City may at its discretion cause the work to be done. Company shall pay to the City the reasonable and documented actual costs of the work in an itemized invoice provided by the City to Company within thirty (30) days after receiving such invoice.

(d) The City reserves the right to install, and permit to be installed, sewer, electric, phone, gas, water, and other pipelines, cables, conduits and related appurtenances and to do, or permit to be done, any underground or overhead work in, across, along, over or under a right-of-way or other public place occupied by Company. The City also reserves the right to construct new streets and public utilities and to alter the design of existing streets and public utilities. In performing such work, the City shall not be liable to Company for any damage, except to the extent of the City's negligence, but nothing herein shall relieve any other person or entity from the responsibility for damages to Company's Facilities. Any claims against the City are subject to the Wyoming Governmental Claims Act. The City will use its best efforts to provide Company with reasonable advance notice of plans by other persons to open the rights-of-way.

(e) On notice from the City that any work is being performed contrary to the provisions herein, or in an unsafe or dangerous manner, or in violation of the terms of any applicable permit, laws, regulations, ordinances, or standards, the City may issue a stop-work order and Company shall stop the work immediately. The City shall issue a stop-work order in writing, unless given verbally in the case of an emergency, and provide the order to the individual doing the work or post it on the work site. A copy of the order shall be sent to Company, and the stop-work order shall state the nature of the alleged violation or unsafe condition and the conditions under which Company may resume work.

Section 9. Removal of Unauthorized Facilities.

Within thirty (30) days following written notice from the City, Company shall, at its expense, remove unauthorized Facilities and restore the rights-of-way and other property to as good a condition as existed prior to construction or installation of its Facilities. Any plan for removal of said Facilities must be approved by the City prior to such work.

Section 10. Abandonment of Facilities.

The City may in its sole discretion allow Company to abandon its Facilities in place, provided that no Facilities may be abandoned in place without the express written consent of the City. Upon abandonment in place of Facilities, the Facilities shall become property of the City, and Company shall submit to the City an instrument in writing, to be approved by the City, transferring to the City the ownership of such Facilities. The failure of Company to submit an instrument shall not prevent, delay, or impair transfer of ownership to the City.

Section 11. Restoration of Rights-of-Way and Other Property.

(a) When Company, or any person acting on its behalf, does any work in or affecting any right-of-way or other property, it shall, at its own expense, promptly remove any obstructions therefrom and restore, at Company's cost, such right-of-way and property to as good a condition as existed before the work was undertaken.

(b) If weather or other conditions do not permit the complete restoration required by this section, the Company shall temporarily restore the affected rights-of-way or property. Such temporary restoration shall be at the Company's cost, and Company shall promptly undertake and complete the required permanent restoration, when the weather or other conditions no longer prevent such permanent restoration.

(c) All restoration work is subject to inspection and final approval by the City. The Company shall restore the affected rights-of-way and property to a comparable or better condition by the Company. If the Company does not restore the right-of-way and/or property to the satisfaction of the City within the established timeframe, the City may make the restoration itself at the cost of Company or have them made at the cost of Company.

Section 12. Compensation.

(a) Federal law confirms the authority of a state or local government to manage the public rights-of-way and to require fair and reasonable compensation from telecommunications providers, on a competitively neutral and nondiscriminatory basis, if the compensation required is publicly disclosed by such government (*see* 47 U.S.C. § 253(c)).

(b) Therefore, as consideration for costs incurred by the City for managing the public rights-of-way occasioned by Company's use and occupancy of public rights-of-way, Company shall pay to the City the sum of two thousand five hundred dollars (\$2,500.00) upon Company's acceptance of this Franchise, and three percent (3%) of its annual gross revenues commencing on

the effective date of this Franchise, such gross revenues being derived from the operation of its Telecommunications System and Facilities in the City, such services including, but not necessarily limited to, wireless and wireline telephone services as described in Wyoming Statute § 15-1-131.

(c) Company's initial payment shall be due within thirty (30) days after final approval of this Franchise by the Governing Body. Subsequent payments shall be due within thirty (30) days after the anniversary date of final approval and acceptance hereof. Company and the City mutually acknowledge the foregoing sums to be fair and reasonable compensation for management of Company's use and occupancy of the public rights-of-way.

Section 13. Compliance with Existing Law.

This Franchise is contingent for its existence and continuance upon Company's continued compliance with all relevant state and federal statutes and regulations, including rules and regulations promulgated by the Wyoming Public Service Commission.

Section 14. Indemnification.

(a) The Company shall, at its own expense, defend, indemnify, save, and hold harmless the City, its employees and agents from any and all claims, actions, causes of action, suits, liabilities, damages, judgments, settlements, costs and expenses of every kind, including attorneys' fees and expenses, which may arise or result by reason of or in consequence of the acts, omissions, or negligence of the Company, its employees or agents.

(b) The Company hereby expressly waives and releases any and all claims which it now has or may hereafter acquire against the City arising from or growing out of any damages to the property of the Company resulting from any act or omission of the City, its employees and agents, occurring prior to and after the date of the passage and acceptance of this ordinance. The parties acknowledge the City is entitled to governmental immunity to the extent created pursuant to the Wyoming Governmental Claims Act, and nothing in this Franchise shall be construed as a waiver of any such applicable immunity.

Section 15. Insurance.

(a) Company must provide proof of the following insurance coverages:

	Insurance Coverages	Description
1.	Commercial General Liability Insurance	For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Franchise.

	Insurance Coverages	Description
2.	Business Automobile Insurance	Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Franchise.
3.	Workers' Compensation	Workers' compensation coverage shall be in effect for the entire term of the Franchise, as required by Wyoming law, for all employees or agents providing services under this Franchise. Company shall provide City proof of workers' compensation or employer's liability insurance coverage, if applicable.
4.	Professional Liability Insurance	Company shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect from any and all claims arising from Company's negligence in the performance of duties under this Franchise. City prefers Company provide this liability insurance coverage pursuant to an "occurrence" policy.
5.	Umbrella Insurance	The Company shall maintain an umbrella insurance policy in the amount of \$5,000,000.

(b) If this coverage is provided pursuant to a “claims made” policy:

1.	Company shall, concurrently with the execution of this Franchise, provide City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Company begins the provision of services under this Franchise; and
2.	If Company’s services extend into a future policy period, Company shall, prior to the policy expiration date, provide City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time Company will provide services under this Franchise; and
3.	Company shall maintain said “claims made” coverage for a period of five (5) years following the last date Company provided services under this Franchise; and
4.	If Company or the insurer terminates “claims made” coverage before the current policy period expires, Company shall provide City advance, written notice of the coverage termination and shall provide City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period not less than three (3) years following the last date Company provided services under this Franchise.

(c) Additional insurance information:

1.	Company shall name City as an “Additional Insured” by endorsement on its insurance policies and shall provide City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.
2.	Company shall provide City with certificates of insurance acknowledging the above-stated coverages before beginning any work under this Franchise.
3.	These policies shall be primary and not contributory. All policies required under this Franchise shall be effective for the duration of the Franchise. Company shall immediately notify City in writing of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of or substantive change to any insurance coverage required by this Franchise, and failure to do so shall be construed to be a breach of this Franchise.

4.	If City requests, Company shall provide the City with copies of insurance policy endorsements listing City as an additional insured. City's failure to request or review such endorsements or certificates shall not affect City's rights or Company's obligation hereunder.
5.	Any insurance company providing coverage under this Franchise shall have a minimum A. M. Best rating of A- (excellent).

Section 16. Construction Bond.

Company shall file with the City a construction bond, in the amount of 125% of the Company's estimated cost of work in the rights-of-way or as otherwise specified by the City, at the time the City grants Company a requested construction or right-of-way use permit. This bond shall be maintained throughout the period of time that Company is performing work under such applicable permit. In the event Company fails to comply with any law, ordinance, or regulation governing the Franchise or the permit, or fails to perform, observe, and fulfill each term, condition, and covenant of the Franchise or the permit, there shall be recoverable, jointly and severally from the principal and surety of the bond, any damage or loss suffered by the City. If the Company commences any work without posting the required bond, the City may deny any subsequent permit(s) the Company seeks and that are required to commence any work.

Section 17. Additional Ducts and Conduits.

Whenever Company is constructing, relocating, or placing conduits in the right-of-way and whenever the City has made a request for ducts or conduits in advance of such installation, Company shall construct and install ducts and conduits when and where requested by the City and related structures necessary to access the ducts and conduits, subject to the separate mutual written agreement of the parties to include charges paid by the City for Company's incremental costs.

Section 18. Records.

(a) The City will have access to, and the limited right to inspect, only those documents and records of Company reasonably related to the City's management of its rights-of-way related to this Franchise and the payment of compensation by the Company to the City.

(b) If the requested documents and records are too voluminous or for security reasons cannot be copied or removed, then Company may request, in writing within ten (10) days of the City's request, that the City inspect them at Company's local office. If any documents or records of Company are not kept in a local office and/or are not made available in copies to the City, and if the City determines that an examination of such documents or records is necessary to its management of the rights-of-way subject to this Franchise, then reasonable travel and related costs and expenses incurred in making such examination shall be paid by Company.

Section 19. Default.

In the event that the Company shall default in the observance or performance of any one or more of the agreements, duties, or obligations imposed upon it by any of the provisions and conditions of this Franchise, and if any such default or defaults shall continue for a period of thirty (30) days (exclusive of all times during which the Company may be delayed or interfered with by unavoidable accidents, acts of God, labor strikes, or the orders or judgment of any commission or court entered in any suit or proceeding) after written notice thereof to the Company from the City is received by Company, stating the alleged default on the part of the Company, then and in each and every such case, the City, in addition to all other rights and remedies allowed by law, shall be entitled to terminate the grant made to the Company in and by this ordinance and Franchise, and all rights and privileges of the Company under this Franchise shall thereupon be at an end.

Section 20. Notices.

Any notice required or permitted to be given to the parties under this Franchise may be sent to the following addresses unless otherwise specified:

City:	City of Cheyenne Attn: City Clerk 2101 O'Neil Avenue, Room 101 Cheyenne, WY 82001
Company:	Visionary Communications, Inc. Attn: Brian Worthen, CEO 1001 South Douglas Hwy., Suite 201 Gillette, Wyoming 82716

Section 21. Miscellaneous.

(a) **Non-Waiver.** The failure of either party to this Franchise to exercise any rights or remedies under this Franchise or to insist upon compliance with any terms or conditions of this Franchise shall not be a waiver of any such rights, remedies, terms, or conditions of this Franchise by the party and shall not prevent the party from demanding compliance with such terms or conditions at any future time or pursuing its rights or remedies.

(b) **Governing Law.** This Franchise will be governed by federal law, the laws of the State of Wyoming, and local law.

(c) **Descriptive Headings.** The headings of the sections and subsections of this Franchise are for reference purposes only and do not affect the meaning or interpretation of the text herein.

(d) Costs and Attorney's Fees. If any action or suit arises in connection with this Franchise, the substantially prevailing party will be entitled to recover all of its costs and attorneys' fees, as well as costs and attorneys' fees on appeal, in addition to such other relief as the court may deem proper.

(e) No Joint Venture. Nothing herein will be deemed to create a joint venture or principal-agent relationship between the parties, and neither party is authorized to, nor shall either party, act toward third persons or the public in any manner that would indicate any such relationship with the other.

(f) Actions of the City or Company. In performing their respective obligations under this Franchise, the City and Company will act in a reasonable, expeditious, and timely manner.

(g) Time is of the Essence. Whenever this Franchise sets forth a time for any act to be performed by Company, such time shall be deemed to be of the essence, and any failure of Company to perform within the allotted time may be considered a breach of this Franchise and sufficient grounds for the City to invoke any relevant remedy.

(h) Counterparts. This Franchise may be executed in one or more counterparts, all of which together shall constitute the original.

(i) Severability. If any section, sentence, clause, or phrase of this Franchise is for any reason declared illegal, invalid, unconstitutional, or void by a court of competent jurisdiction, all other provisions hereof not so held shall be and remain in full force and effect.

(j) Entire Agreement. This Franchise represents the entire understanding and agreement between the parties with respect to the subject matter hereof and supersedes all prior oral and written negotiations between the parties.

(k) Modification. The parties may alter, amend, or modify the terms and provisions of this Franchise upon written agreement of both parties to such alteration, amendment, or modification.

Section 22. Effective Date.

This Franchise and its enacting ordinance shall be in full force from and after the date of its publication.

Section 23. Assignment.

With the prior written consent of the City, which shall not be unreasonably conditioned, limited, or withheld, all of the rights and privileges granted to the Company hereunder may pass to its legal successor or successors or by assignment to any corporation acquiring all or substantially all of the assets or equity of the Company, or that part thereof located in the City, subject to all the terms and conditions of this Franchise, and provided that said successor or successors or said assignee shall have filed with the Clerk its acceptance of said terms and conditions.

Section 24. Repeal.

All ordinances or parts of ordinances in conflict with this Franchise are hereby repealed, if any such conflict does in fact exist.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

Publish: Wyoming Tribune Eagle

Publication Date: _____

Accepted and approved this _____ day of _____, 2021.

Visionary Communications, Inc.

By: _____

Print Name: _____

Title: _____